Safety rules for strata common property

nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/safetyPrinted: 24 January 2022

The owners corporation must make sure that common property is kept safe and working. They may also ask a strata manager to take on this task.

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Key information

- The owners corporation must make sure all common areas are maintained, and state and local government safety rules are followed.
- Certain windows must have a child safety lock to prevent accidents from falls.
- Pools and spas must be registered and inspected every three years.
- Most strata schemes must get a yearly fire safety statement.
- Residents must have at least five days' notice before any pesticide is used.

Keeping residents safe

There are strict rules for strata buildings in NSW to make sure residents, visitors and workers are kept safe while using common property.

The owners corporation must obey window (#window), pool and spa (#pool-spa), fire safety (#fire-safety) and pesticide laws (#pesticides).

It must make sure these rules are followed. It may ask a strata manager to take on this task.

If the strata scheme is mixed-use, or if the owners corporation has any direct employees, work health and safety (WHS) laws can also apply.

Even if WHS laws don't apply, it is best if strata schemes do a general safety audit. This will help to manage risks, such as:

- trip hazards
- a lack of safety signage – for example, a speed limit sign on the shared driveway. Schemes would need to pass a by-law to set the speed limit.

Window safety rules

Windows within a strata scheme must have a safety lock if:

- the lowest part of the window is within 1.7 m from the inside floor, and
- the inside floor is 2 m or higher from the ground outside.

A safety lock must stop the window opening more than 12.5 cm.

Fixed windows (those that do not open at all) do not require a lock.

All locks must be childproof and resist force equal to 25 kgs.

The owners corporation must pay to install and repair window locks, unless otherwise agreed in your **strata by-laws (https://www.nsw.gov.au/housing-and-construction/strata/living/by-laws)**.

Generally, the strata committee can arrange to buy or install a safety lock using the administrative fund.

A review of all window safety locks and any larger maintenance costs may be scheduled through your 10-year capital works plan.

Alternative to window locks

Security screens, such as bars or grills on the windows, can be used instead. If so, any gaps must be less than 12.5 cm.

Flyscreens are allowed instead of locks, only if they can resist very strong outward pressure to stop a child falling through.

Pool and spa safety rules

Owners corporations are responsible for swimming pools and spas in a scheme. They must make sure the pools and spas meet state and local council rules, which include fencing and signage.

Any pool or spa must be registered to make sure it is safe for everyone to use.

Fencing and signs

Fencing must be at least 1.2 metres high.

The gap from the bottom of the pool fence to the ground, or between fence rungs, can’t be bigger than 10 cm.

Children must not be able to climb a pool fence.

Any doors in a pool fence must close and latch by themselves, with the latch being at least 150 cm above the ground.

Signs showing how to perform CPR must be on the pool fence or gate. You can buy a CPR sign from your local pool shop, council, St John Ambulance, Australian Red Cross or Royal Life Saving.

Comprehensive list of fencing and signage rules

NSW Fair Trading has a comprehensive list of all pool fencing requirements and safety rules.

Use this information to keep the people in your strata community safe.

Visit Fair Trading's website to read more (https://www.fairtrading.nsw.gov.au/housing-and-property/building-and-renovating/pools-and-pool-safety/pool-fencing-requirements)

Your pool must be registered

Any pool or spa must be registered to make sure it is safe for everyone to use.

You can pay a fee to your local council to register your pool or you can do it yourself online.

A certificate of registration will be given to the owners corporation.

Register a strata pool online on the **NSW Swimming Pool Register (https://www.swimmingpoolregister.nsw.gov.au/)**.

Inspections

Strata schemes with more than two lots must have any pool or spa inspected by the local council every three years.

To arrange an inspection, contact your local council.

Fire safety rules

Some strata schemes must get a fire safety statement each year from a Fire Protection Association Australia (FPAA)-accredited practitioner.

If one is required, the owners corporation should report on the **fire safety statement (#safety)** at each AGM.

Does my scheme need an annual fire safety statement?

Generally, the answer is yes. But it depends on the type of buildings in the strata scheme.

These buildings do not need a fire safety statement:

- freestanding or detached townhouses or houses (a ‘Class 1a’ building)
- single group or groups of townhouses, row houses or villas (a ‘Class 1a’ building)
- structures that aren't lived in, like a private garage, car port or swimming pool (a ‘Class 10’ building or structure).

Everything else requires a yearly inspection.

More information on the specific requirements for different building types is in the **National Construction Code explanation sheet (https://www.abcb.gov.au/resource/understanding-ncc/understanding-ncc-building-classifications)**.

How to get a fire safety statement

To get a fire safety statement, you will need to hire an accredited Fire Protection Association Australia (FPAA) inspector.

The strata committee or a strata managing agent can arrange this if the task has been delegated to them.

First, check what you need to get inspected for your building. Do this by checking the last fire safety statement. Or, get a copy of the fire safety schedule from the strata committee or original building owner (usually the developer).

Next, search for an inspector that is accredited to check what your building needs. Check who did the last fire safety inspection, or search on the Internet.

Once you have chosen a few possible inspectors, ask for quotes and evidence they are qualified to inspect your building.

Choosing an inspector, getting it done

It can be hard to know if your building/s need an inspection.

Learn more about safety inspections and safety certificates. Also includes templates you can use to get the job done quickly.

Visit the Department of Planning (https://www.planning.nsw.gov.au/Policy-and-Legislation/Buildings/Fire-safety-in-buildings/Fire-safety-certification).

External cladding

The NSW Government has been working on concerns about fire safety and external cladding in high-rise buildings.

Visit the Fire safety and external wall cladding page on the **Fair Trading website (https://www.fairtrading.nsw.gov.au/housing-and-property/fire-safety-and-external-wall-cladding#owners)** for details.

Annual fire safety statement information must be reported to NSW government

The person in your strata scheme responsible for reporting key information to NSW government each year must declare whether your strata scheme has an annual fire safety statement. This is stated in your AGM documentation. Find out more about **strata annual reporting (https://www.nsw.gov.au/housing-and-construction/strata/annual-reporting)**.

Pesticides notification

The owners corporations must give residents at least five days' notice before any pesticides are used on inside or outside common areas.

How to give notice

There are many ways to provide notice:

- in person
- by email or telephone

- by post or letterbox drop
- written notice under resident doors
- placing a notice on common notice boards and near the main building entrance.

Visit the **NSW Environment website (https://www.epa.nsw.gov.au/your-environment/pesticides/compulsory-notification-pesticide-use)** for details.

Need more help?

Contact Fair Trading

If you have any further questions about strata, you can contact Fair Trading via phone or in-person at a Service NSW centre.

Phone:**13 32 20 (https://www.nsw.gov.au/tel:13 32 20)**8:30am to 5pm, Monday-Friday

In person:**Find your nearest Service NSW Centre (https://www.service.nsw.gov.au/service-centre)**

Related information

Popular pages

Funds and levies (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/finances-insurance)

Understand how to set budgets and levies, the different funds and insurance, and what to do if something goes wrong.

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Putting forward a proposal (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/how-to-run-a-strata-meeting)

There are set steps for running strata meetings, making sure every eligible person can have their say.

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Resolving a dispute (https://www.nsw.gov.au/housing-and-construction/strata/disputes)

Learn how you can resolve disagreements, and where to go for help.

→

Who's who in strata (https://www.nsw.gov.au/housing-and-construction/strata/roles)

Understand the roles of the owners corporation and strata committee, strata manager and building manager.

Helpful links

- NSW Cladding Taskforce (https://www.nsw.gov.au/housing-and-construction/nsw-cladding-taskforce)
- Asbestos NSW (https://www.asbestos.nsw.gov.au/)
- Register your pool or spa (https://www.swimmingpoolregister.nsw.gov.au/)

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